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|   |                                                        | <p>should be released so that Paul can use them to pay for his defense of this action. (Motion to Release Funds at 8:3-9:27.)</p> <p>Paul argued the funds should be released so that he could use them to pay for his defense. He raised the issue. The opposition responded to this argument and requested that the settlement proceeds either be distributed to the beneficiaries or placed into a blocked account. (ROA 176 at 5:15-9:13.) Paul's reply dedicates more than two of its seven total pages to the issue of Paul's use of the funds for his defense. (ROA 178 at 4:16-6:27.) The issue of Paul's ability to utilize the funds for his defense was raised by the motion and was, therefore, before the court.</p> <p>Further, even if the issue had not been raised by Paul, "the probate court has the <i>'inherent power'</i> to decide all incidental issues necessary to carry out its express powers to supervise the administration of the trust." [Citation.] This inherent equitable power of the probate court has long been recognized to encompass the authority to take remedial action. 'Under California trust law, a court can intervene to prevent or rectify abuses of a trustee's powers. [Citations.]' [Citation.] And, where a probate court has the express authority to remove a trustee sua sponte, it necessarily has the inherent equitable power to employ the less extreme remedy of suspending most of the trustee's powers and appointing an interim trustee pending a hearing. [Citation.] (<i>Schwartz v. Labow</i> (2008) 164 Cal.App.4th 417, 427-428.)</p> <p>The motion is <b>DENIED</b>.</p> <p>Petitioner is directed to give notice.</p> |
| 4 | <b>Anderson/Callahan – Trust;<br/>30-2024-01389721</b> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 5 | <b>Bent – Trust;<br/>30-2024-01418521</b>              | <p style="text-align: center;"><b>Motion for Judgment on the Pleadings</b></p> <p>Petitioner Bernadette Bell's Motion for Judgment on the Pleadings as to Respondent James Charles Bent's Opposition to Petitioner Bernadette Bell's Petition to Confirm Beneficiary Status and for Distribution Pursuant to Code of Civil Procedure section 438 (ROA 129) is <b>DENIED</b>.</p> <p>This proceeding was initiated on August 13, 2024, when Charles Lamar Bent filed a petition (ROA 2) seeking removal of James Charles Bent (James) and James T. Sullivan as trustees of The Bent Trust (Trust). The initiating petition is</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |